

Court No. - 21

Case :- WRIT - C No. - 270 of 2023

Petitioner :- Kadeer Hussain @ Kadeer Ahmad

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Rakesh Kumar Mishra

Counsel for Respondent :- CSC,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Learned counsel for the petitioner submits that without there being any final assessment order, respondents are proceeding to recover the amount in question.

Shri Pranjal Mehrotra, learned counsel for the respondent-Corporation seeks time to obtain instruction.

List as fresh on 13th January, 2023.

Order Date :- 6.1.2023

D. Tamang

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Ajit Singh,J.

The contention is that without there being final assessment order, the recovery certificate has been issued.

Sri Pranjal Mehrotra, learned counsel for the electricity department does not dispute the same.

Connect and list along with Writ Petition no. 37137 of 2022 on 18.1.2023.

Order Date :- 13.1.2023

Faridul

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Counsel for Respondent :- CSC,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Put up tomorrow i.e. on 19.01.2023.

Order Date :- 18.1.2023

Sumit Kumar

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

The instant petition has been filed praying for quashing of the provisional assessment notice dated 31.12.2020 and recovery citation dated 28.06.2022 in a case of alleged theft of electricity by the petitioner.

On instructions, Sri Pranjal Mehrotra, learned counsel appearing on behalf of Electricity Department states that the recovery citation is not against the petitioner but against one Kabir Ahmad. He further states that till date, no final assessment has been made against the petitioner.

Having regard to the aforesaid stand of the respondents Electricity Department, we dispose of the instant petition with liberty to the petitioner to file objections against the provisional assessment notice within fifteen days from today and in which event, it shall be open to the respondents to proceed in the matter strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005 in relation to assessment in cases of unauthorised use of electricity.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 19.1.2023

Ruhi